

**SUBSTITUTE FOR
SENATE BILL NO. 527**

A bill to amend 1961 PA 236, entitled
"Revised judicature act of 1961,"
by amending sections 151d and 321 (MCL 600.151d and 600.321),
section 151d as amended by 2020 PA 378 and section 321 as amended
by 2012 PA 617.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 Sec. 151d. (1) The juror compensation reimbursement fund is
2 created in the state treasury. The money in the fund must be used
3 as provided in section 151e.

4 (2) The state treasurer shall credit to the juror compensation
5 reimbursement fund deposits of proceeds from the collection of
6 driver license clearance fees as provided in section 321a(5) of the
7 Michigan vehicle code, 1949 PA 300, MCL 257.321a, and deposits of



proceeds from the collection of jury demand fees as provided in sections 2529(1)(c) and 8371(9), and shall credit all income from investment credited to the fund by the state treasurer. The state treasurer may invest money in the fund in any manner authorized by law for the investment of state money. However, an investment must not interfere with any apportionment, allocation, or payment of money as required by section 151e. The state treasurer shall credit to the fund all income earned as a result of an investment of money in the fund. Except as **otherwise** provided in ~~subsections (3), (4), (5), (6), and (7),~~ **this section**, the unencumbered balance remaining in the fund at the end of a fiscal year must remain in the fund and must not revert to the general fund.

(3) For the state fiscal year ending September 30, 2005 only, \$4,000,000.00 of the unencumbered balance remaining in the fund at the end of that fiscal year must be transferred by the state treasurer to the general fund.

(4) For the state fiscal year ending September 30, 2008 only, \$2,250,000.00 of the unencumbered balance remaining in the fund at the end of that fiscal year must be transferred by the state treasurer to the general fund.

(5) For the state fiscal year ending September 30, 2010 only, \$1,352,100.00 of the unencumbered balance remaining in the fund at the end of that fiscal year must be transferred by the state treasurer to the court equity fund created in section 151b.

(6) For the state fiscal year ending September 30, 2011 only, \$2,607,500.00 of the unencumbered balance remaining in the fund at the end of that fiscal year must be transferred by the state treasurer to the court equity fund created in section 151b.

(7) For the state fiscal year ending September 30, 2020 only,



1 \$2,500,000.00 of the unencumbered balance remaining in the fund at
2 the end of that fiscal year must be transferred by the state
3 treasurer to the general fund.

4 (8) For the state fiscal year ending September 30, 2027 only,
5 \$1,000,000.00 of the unencumbered balance remaining in the fund at
6 the end of that fiscal year must be transferred by the state
7 treasurer to the court equity fund created in section 151b.

8 (9) For the state fiscal year ending September 30, 2028 only,
9 \$1,000,000.00 of the unencumbered balance remaining in the fund at
10 the end of that fiscal year must be transferred by the state
11 treasurer to the court equity fund created in section 151b.

12 (10) For the state fiscal year ending September 30, 2029 only,
13 \$1,000,000.00 of the unencumbered balance remaining in the fund at
14 the end of that fiscal year must be transferred by the state
15 treasurer to the court equity fund created in section 151b.

16 Sec. 321. (1) The following fees shall be paid to the clerk of
17 the court of appeals and may be taxed as costs if costs are allowed
18 by order of the court:

19 (a) For an appeal as of right, for an application for leave to
20 appeal, or for an original proceeding, \$375.00. This fee shall be
21 paid only once for appeals that are taken by multiple parties from
22 the same lower court order or judgment and can be consolidated.

23 (b) Upon the entry of any motion except a motion described in
24 subdivision (c) upon the motion docket, \$100.00.

25 (c) Upon the entry of a motion for immediate consideration or
26 a motion to expedite appeal upon the motion docket, \$200.00. This
27 fee shall be paid only once regardless of the number of lower court
28 files involved in the appeal. A prosecuting attorney is exempt from
29 paying a fee under this subdivision with regard to an appeal



1 arising out of a criminal proceeding.

2 (2) The clerk of the court of appeals shall charge 50 cents
3 per page for certified copies of entries or papers in any action or
4 proceedings when required for any other purpose than one connected
5 with the progress or disposition of the action or proceeding.

6 (3) The clerk shall charge 50 cents per page for all
7 uncertified copies of opinions, except those sent to 1 counsel
8 representing each party in the case, for which no charge shall be
9 made.

10 (4) If a person is unable to pay the fees required by this
11 section, the person, by motion, accompanied by the person's
12 affidavit stating facts showing that inability, may ask the court
13 to waive the fees and the court or a judge of the court may waive
14 payment of the fees.

15 (5) Each month the clerk of the court of appeals shall deposit
16 with the state treasurer all fees collected and obtain and file a
17 receipt for the fees deposited.

18 (6) Costs shall be awarded in the discretion of the court.

19 (7) The fees collected under this section shall be used to
20 ~~fund a probation swift and sure sanctions program created under the~~
21 ~~probation swift and sure sanctions act, chapter XIA of the code of~~
22 ~~criminal procedure, 1927 PA 175, MCL 771A.1 to 771A.8.~~**support**
23 **operational expenses of the court of appeals.**